

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

Date Purchased:

-----X
OMAR YASIN, infant, by his parents and natural guardians,
LISA YASIN and OMAR YASIN, SR. and LISA YASIN
and OMAR YASIN, SR., Individually

SUMMONS

Plaintiffs designate Kings
County as the place of trial.

Plaintiffs,

-against-

The basis of venue is:
Plaintiff's place of residence
and location of incident

THE CITY OF NEW YORK, NEW YORK CITY BOARD
OF EDUCATION, ANNE TULLY, in her individual and
official capacities, "JANE" LAGASA (first name being
fictitious and presently unknown), in her individual and
official capacities and "JANE" BRYANT, (first name being
fictitious and presently unknown) in her individual and
official capacities, NEW YORK CITY POLICE
DEPARTMENT, NYC P.O. "JOHN" CUCUZZA, name
being fictitious and presently unknown), in his individual and
official capacities, NYC P.O. "JOHN DOE" (name being
fictitious and presently unknown), in his individual and
official capacities,

Plaintiffs reside at:
1724A Sterling Place
Brooklyn, NY 11233

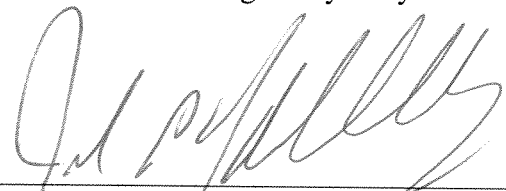
County of Kings

Defendants.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: GREAT NECK, NY
May 2, 2013



JACK A. YANKOWITZ
THE YANKOWITZ LAW FIRM, P.C.
Attorneys for Plaintiff(s)
OMAR YASIN, infant, by his parents and

natural guardians, LISA YASIN and OMAR
YASIN, SR. and LISA YASIN and OMAR
YASIN, SR., Individually
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200
Our File No. 7536-12

TO:

The City of New York
The Comptroller of the City of New York
Municipal Building
1 Centre Street
New York, New York 10007
and/or
NYC Law Department
100 Church Street
New York, New York

NEW YORK CITY POLICE DEPARTMENT
P.O. "JOHN" CUCUZZA and "JOHN DOE"
1 Police Plaza
New York, New York
and/or
61st Precinct
2575 Coney Island Avenue
Brooklyn, New York

NEW YORK CITY BOARD OF EDUCATION
65 Court Street, Room 809
Brooklyn, New York 11201
and/or
NYC Law Department
100 Church Street
New York, New York

ANNE TULLY
"JANE" LAGASA
"JANE" BRYANT
65 Court Street, Room 809
Brooklyn, New York 11201
and/or

J.H.S. 014
2424 Batchelder Street
Brooklyn, NY 11235
and/or
NYC Law Department
100 Church Street
New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
OMAR YASIN, infant, by his parents and natural
guardians, LISA YASIN and OMAR YASIN, SR.
and LISA YASIN and OMAR YASIM, SR., Individually

VERIFIED COMPLAINT

Index No.:
Date Purchased:

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY BOARD
OF EDUCATION, ANNE TULLY, in her individual and
official capacities, "JANE" LAGASA (first name being
fictitious and presently unknown), in her individual and
official capacities and "JANE" BRYANT, (first name being
fictitious and presently unknown) in her individual and
official capacities, NEW YORK CITY POLICE
DEPARTMENT, NYC P.O. "JOHN" CUCUZZA, name
being fictitious and presently unknown), in his individual
and official capacities, NYC P.O. "JOHN DOE" (name
being fictitious and presently unknown), in his individual
and official capacities,

Defendants.

-----X

Plaintiffs, by their attorneys, **THE YANKOWITZ LAW FIRM, P.C.**, complaining of
the Defendants, respectfully allege upon information and belief:

PRELIMINARY STATEMENT

1. This is an action about the rights of students, and the infant plaintiff, OMAR
YASIN in particular, to be educated in a safe environment free from unnecessary and excessive
abuse, force and violent frightening encounters with armed New York City precinct based Police
Officers who are deployed and patrol New York City Public Schools, and J.H.S. 014, in

particular. The infant OMAR YASIN, 13 years of age at the time of the subject incident, brings this action against the defendants CITY OF NEW YORK, THE NEW YORK CITY BOARD OF EDUCATION, THE NYC POLICE DEPARTMENT, School Principal, ANNE TULLY, Assistant Principal LAGASA and Dean BRYANT and NEW YORK CITY POLICE OFFICERS CUCUZZA AND “JOHN DOE”, who carelessly, recklessly and negligently deprived and violated the infant plaintiff’s civil and constitutional rights and caused, permitted and allowed him to be falsely arrested and imprisoned, maliciously prosecuted, assaulted and battered, physically, verbally and emotionally abused, injured and damaged.

2. The Actions of the defendants were an unfortunate but inevitable result of the policies and practices of THE CITY OF NEW YORK, THE NEW YORK CITY BOARD OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT governing the deployment of armed police officers into NYC Public Schools and their school yards.

3. In 1998 the defendant THE CITY OF NEW YORK adopted a memorandum of understanding (MOU) transferring school safety responsibilities from THE NEW YORK CITY BOARD OF EDUCATION to NEW YORK CITY POLICE DEPARTMENT.

4. Members of THE NEW YORK CITY BOARD OF EDUCATION, engage in a policy and practice of unlawfully seizing, detaining and confining school children and causing, permitting and allowing their arrest and imprisonment for minor violations of school rules or conduct which does not constitute probable cause of criminal activity, in violation of the Fourth Amendment of the United States Constitution and New York State Law.

5. Members of the NYC Police Department, the New York Police Department School safety division and NYPD precinct-based officers assigned to and deployed to NYC public schools, engage in a policy and practice of unlawfully seizing and arresting NYC school children, in violation of the Fourth Amendment of the United States Constitution and New York State Law. This policy and practice manifests itself in several ways: arresting students for minor

violations of school rules or for conduct that does not constitute probable cause of criminal activity, detaining those students off school grounds at police precincts, handcuffing students and detaining them in seclusion rooms in school buildings, using excessive and abusive force against school children.

6. A class action lawsuit against the City of New York, et al has been pending and in litigation for several years, on behalf of middle and high school students enrolled in NYC Public Schools, (UNITED STATES DISTRICT COURT, EASTERN DISTRICT OF NEW YORK, DOCKET # 10CV0210 (RRM) (ALC), challenging the aforesaid unconstitutional policies and practices of NYCPD and the defendants aforesaid policy, custom and usage under and pursuant to MOU.

7. Research demonstrates that law enforcement agencies frequently fail to account for the ways in which policing students in public schools differs from policing adults on the street. A study commissioned by the U.S. Department of Education found, “One [of] the most frequent and destructive mistakes many programs make is to fail to define [law enforcement’ s] roles and responsibilities in detail before—or even after—the officers take up their posts in schools. When programs fail to do this, problems are often rampant in the beginning of the program—and often persist for months and even years.”

8. Such problems are endemic in New York City, where the 1998 MOU transferring school safety responsibilities to the NYPD failed to adequately define the roles and responsibilities of members of the NYPD or the NYC BOARD OF EDUCATION, teachers, deans and principals. This failure by the City to institute an adequate school safety governance structure is evident in the challenged policy and practice of unlawfully seizing and arresting school children absent probable cause and in the challenged policy and practice of using excessive force against school children. Indeed, it is the stated policy of the NYPD that NYPD personnel should remove “unruly” children from NYC public schools, yet the term “unruly” has not been

defined and no other limits to this policy or protocols respecting this policy, have been enunciated. This broad and undefined policy invites unconstitutional arrests of, and excessive force directed at, schoolchildren.

9. As a result of these unconstitutional policies and practices, NYC Public School students miss school and suffer psychological and physical injury. They also suffer ongoing harm. They face the humiliation and degradation of being paraded in handcuffs in front of their classmates and teachers and taken to seclusion rooms and to police precincts where they are handcuffed for hours. They face the humiliation and degradation of being hauled out of their schools in handcuffs—again in front of classmates and teachers—and being brought to police precincts for booking. Because the arrests made by NYPD personnel are often groundless, any resulting criminal cases are almost always dismissed and/or diverted to non-punitive processes. These subsequent dispositions do not mitigate the harm suffered by school children who are handcuffed, arrested, imprisoned and suspended from school.

10. The policies and practices challenged here constitute the official municipal policy of the Defendants CITY OF NEW YORK, the NEW YORK CITY BOARD OF EDUCATION AND THE NEW YORK CITY POLICE DEPARTMENT. First, the seizures of students—by means of handcuffing, seclusion and/or formal arrest—for conduct or minor misbehavior that falls short of probable cause of criminal activity constitutes the official stated policy of the City-Defendants. Second, the unlawful seizures and arrests of, and use of excessive physical force against school children constitute municipal policy because they occur with such frequency as to amount to a custom and usage of the City-Defendants. Finally, City-Defendants’ failure to appropriately train and supervise the members of the NYPD or employees of the NYC BOARD OF EDUCATION in order to address a known pattern of unconstitutional arrests and seizures, and the use of excessive force, amounts to deliberate indifference, thus constituting official municipal policy.

11. Members of the NYPD and employees of the NYC BOARD OF EDUCATION engage in a pattern and practice of subjecting New York City public students to unlawful seizures and arrests by: (a) arresting students for minor violations of school rules or conduct that does not constitute probable cause of criminal activity, and removing and holding those students on school grounds and off school grounds, often at police precincts; and (b) handcuffing students and detaining them in seclusion rooms in school buildings, for minor violations of school rules or conduct that does not constitute probable cause of criminal activity. Students who are arrested are then removed from schools, typically in handcuffs, and held at police precincts, or are transported to hospitals for emergency psychiatric evaluations in the absence of any legitimate cause for such evaluations. In addition, upon information and belief, a significant number of school children under the age of sixteen have been arrested at school for allegedly having committed non-criminal conduct or violations even though such arrests are prohibited by state law.

12. The challenged conduct by members of the NYPD and employees of the NYC BOARD OF EDUCATION constitutes official municipal policy. First, the policy and practice of unlawfully seizing and arresting students for conduct or minor school misbehavior that does not amount to probable cause of criminal activity is the official stated policy of the NYPD, which broadly authorizes law enforcement personnel to remove “unruly” children from schools. Second, both challenged policies and practices—the unlawful seizures and arrests of, as well as the use of excessive force against, schoolchildren—are so widespread and frequent as to constitute a custom and usage of members of the NYPD and NYC BOARD OF EDUCATION. Third, City-Defendants were well aware of, yet deliberately indifferent to, the prevalence of the challenged policies, failing to make meaningful attempts to improve the training and supervision of members of the NYPD and NYC BOARD OF EDUCATION employees. For each of these

reasons, the aforesaid policies and practices are directly attributable to the Defendants, CITY OF NEW YORK, NYC BOARD OF EDUCATION AND THE NYCPD.

13. The policy and practice of unlawfully seizing and arresting school children for conduct or minor misbehavior that does not establish probable cause of criminal activity constitutes the official policy of the City, as set forth by the NYC Police Commissioner Raymond W. Kelly and the predecessor of Assistant Chief Thomas Chan, Commanding Officer of the NYPD School Safety Division, both of whom have or had final decision-making authority in these matters.

14. On June 11, 2007, defendant Police Commissioner Kelly submitted a letter to New York City Councilmember Robert Jackson indicating that the duties of NYPD School Safety Officers include “removing unruly students” and “enforc[ing] the rules and regulations” of the “Student Disciplinary Code.”

15. Likewise, on October 10, 2007, James Secreto, then an Assistant Chief and the Commanding Officer of the NYPD School Safety Division (and Thomas Chan’s predecessor), submitted a written statement to the New York City Council, stating that School Safety Officers are responsible for “removing unruly” students from public schools.

16. In this context, the removal of an “unruly” student by members of the NYPD constitutes a seizure and/or arrest; students are not free to leave once seized and/or arrested, and often they are transported to a local police precinct even when they have done nothing more than arguably violate school rules in a non-criminal matter. In addition, although neither Defendant Kelly nor former Assistant Chief Secreto further defined the term “unruly”, as a matter of logic and plain language, the term encompasses conduct or minor misbehavior that does not amount to probable cause of criminal activity.

17. In these ways, the policy and practice of unlawfully seizing and arresting school

children for conduct or minor school misbehavior, absent probable cause of criminal activity, constitutes official municipal policy, as articulated by officials with final decision-making authority in these matters. This widespread and frequent actions by members of the NYPD and NYC BOARD OF EDUCATION occur as part of a larger pattern and practice of unlawfully seizing and arresting students absent probable cause, and of using excessive force against school children that is so prevalent as to amount to a custom and usage of the Defendants, CITY OF NEW YORK, NYC BOARD OF EDUCATION AND NYCPD.

18. City-Defendants have been aware of the pervasive nature of the pattern and practice by members of the NYPD and employees of the NYC BOARD OF EDUCATION of unlawfully seizing and arresting schoolchildren, and the pattern and practice of subjecting them to excessive force. Yet, City-Defendants have been deliberately indifferent to these patterns and practices, and have not attempted to remedy them.

19. City-Defendants also have had actual knowledge of these patterns and practices for several years from numerous sources, including but not limited to,

(1) Class action suit filed by attorneys on behalf of the New York Civil Liberties Union Foundation, the American Civil Liberties Union Foundation and Dorsey & Whitney LLP, in the U.S. District Court, Eastern District, B.H. on behalf of her minor daughter D.B. et al v. City of New York, et al, Docket # 10CV0210 (RRM)(ALC) and the evidence and documentation exchanged therein prior to February 15, 2012.

(2) In March 2007, the New York Civil Liberties Union and the American Civil Liberties Union published a report titled *Criminalizing the Classroom: The Over-Policing of New York City Schools*, documenting instances of abuses by members of the NYPD School Safety Division. Upon information and belief, the NYCPD and all senior personnel within the NYPD School Safety Division received copies of the *Criminalizing the Classroom* report.

(3) City-Defendants obtained further knowledge of the challenged patterns and practices through the publication of other reports documenting abuses by members of the NYPD, *See e.g.* Drumm Major Institute for Public Policy, *A look at the Impact Schools* (June 2005); Kevin P. Brady, Sharon Balmer and Deinya Phenix, *School-Police Partnership Effectiveness in Urban Schools: An Analysis of New York City's Impact Schools Initiative* (Education and Urban Society, Aug. 2007); National Education and Social Rights Initiative and Teachers Unite, *Teachers Talk: School Culture, Safety and Human Rights* (Oct. 2008); and Urban Youth Collaborative, *Bill of Rights* (2006).

(4) City-Defendants also obtained actual knowledge of the pattern and practice by members of the NYPD of unlawfully arresting schoolchildren, based on letters submitted by the American Civil Liberties Union and the New York Civil Liberties Union to Defendant Police Commissioner Kelly dated October 7, 2008 and November 4, 2008. These letters documented that a significant number of schoolchildren under the age of sixteen have been arrested at school for non-criminal violations even though such arrests are prohibited by state law.

(5) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from media reports. For example, the New York Daily News reported on June 19, 2008 that an NYPD School Safety Officer handcuffed a five-year old boy and transported him to a psychiatric hospital, without parental consent, after the boy threw what was described as a “temper tantrum.” Likewise, on March 10, 2008, the New York Daily News reported that an NYCPD School safety Officer handcuffed two four-year old boys for refusing to take a nap.

(6) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from complaints filed with the IAB regarding conduct by members of the NYPD.

(7) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from notices of claims and complaints asserted against them prior to February 15, 2012, regarding the conduct of members of the NYPD and the NYC BOARD OF EDUCATION for incidents involving the unlawful seizure, arrest, imprisonment, handcuffing and use of excessive force, verbal, physical and emotional abuse of children in the NYC Public School system.

(8) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on October 10, 2007 regarding the NYPD School Safety Division, Former Assistant Chief James Secreto was present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. At that hearing, a number of children offered testimony regarding abuses suffered at the hands of NYCPD School Safety Officers as described above. At the same hearing, Gregory Floyd, the president of the union representing all School Safety Offices, testified that he agreed with the statement that “we need to have more mediation training, more conflict resolution, knowing [sic] how to diffuse [sic] situations among not only staff and teachers and administrators, but also for students...”

(9) City-Defendants also obtained actual knowledge of the patterns and practices challenged here from the New York City Council hearing held on November 10, 2009 regarding the NYPD School Safety Division. Former Assistant Chief James Secreto was present at this hearing and testified on behalf of himself and Defendant Police Commissioner Kelly. During that hearing, testimony was offered regarding the unlawful seizures, arrests, and beatings of a number of children.

20. Notwithstanding this detailed knowledge of the patterns and practices challenged here, City-defendants have failed to undertake any meaningful attempt to curtail these patterns and practices, in blatant disregard of the rights of New York City public schoolchildren.

FACTS

21. Upon information and belief, on 3 occasions prior to February 15, 2012, the infant plaintiff, OMAR YASIN was the victim of and was injured by the bullying of other students at J.H.S. 014, which was known to the schools Principal, defendant ANNE TULLY, Assist. Principal, defendant “JANE” LAGASA and Dean, defendant, “JANE” BRYANT.

22. On February 15, 2012, 13 year old plaintiff, OMAR YASIN was a student at JHS 014, located at 2424 Batchelder Street, Brooklyn, New York.

23. On February 15, 2012, in the schoolyard of said JHS 014, the 13 year old OMAR YASIN was assaulted and struck by another student, upon information and belief, named Omar “Doe” (last name being unknown at the present time) and the infant plaintiff attempted to defend himself to prevent further injury.

24. Thereafter, on February 15, 2012, the infant plaintiff, while in the cafeteria of JHS 014 was caused to be removed, seized and confined by the defendants TULLY, LAGASA AND BRYANT.

25. That said defendants TULLY, LAGASA AND BRYANT were advised by the infant plaintiff OMAR YASIN that he committed no crime but was the victim of an assault and battery and attempted to defend himself to prevent further and additional injury, and with said knowledge, without notifying the child’ s parents LISA YASIN and OMAR YASIN, SR. these defendants caused, permitted and allowed the defendant NYC POLICE OFFICER “JOHN” CUCUZZA and defendant NYC POLICE OFFICER “JOHN DOE” to falsely arrest, imprison and handcuff the infant plaintiff behind his back, take him out of the school in view of other students, teachers and other persons, place the child into a NYCPD vehicle and brought to the 61st Pct.

26. Upon information and belief, at all times prior to handcuffing and arresting 13

year old OMAR YASIN, the aforesaid defendants CUCUZZA and “JOHN DOE” interrogated the infant plaintiff and were advised and made aware by the infant plaintiff that he committed no crime and was the victim of an assault and battery and attempted to defend himself to prevent further and additional injury.

27. Upon information and belief, defendants CUCUZZA AND “JOHN DOE” at no time contacted or notified the infant plaintiff’s parents and guardians LISA YASIN AND OMAR YASIN, SR.

28. Upon information and belief, at no time herein mentioned, did defendant CUCUZZA and “JOHN DOE” advise the infant plaintiff of his legal rights, rights to legal counsel and did not read and explain to the infant plaintiff, his Miranda and Constitutional Rights.

29. Upon information and belief, at the 61st Pct. the defendants CITY OF NEW YORK, NYCPD, Police Officers CUCUZZA AND “JOHN DOE”, their agents, servants and/or employees interrogated, falsely arrested and imprisoned the infant plaintiff OMAR YASIN and treated him like a hardened criminal; he was placed into a room and handcuffed to a wall for approximately 3 hours; he was denied food and drink; he was denied access to legal counsel; he was denied access and permission to see and speak with his parents LISA YASIN and OMAR YASIN, SR. even though they were present at the 61st Pct. for the 3 hours of incarceration and repeatedly demanded to see and speak with their 13 year old child.

30. At all times herein mentioned, the defendants, NYCPD, P.O. CUCUZZA, “JOHN DOE”, their agents, servants and/or employees were aware that the infant plaintiff was a victim of assault and battery, he committed no crime and there was no probable cause for his arrest; the NYCPD, defendants CUCUZZA and “JOHN DOE” used excessive, abusive and unnecessary force, falsely and unnecessarily arrested, handcuffed and imprisoned the infant

plaintiff for approximately 3 ½ hours; THERE WAS NO WARRANT FOR THE INFANT PLAINTIFF' S ARREST.

31. At all times herein mentioned, the infant plaintiff presented no danger to himself or anyone else, including the defendants CUCUZZA and “JOHN DOE”, he had no weapons and provided no resistance to his aforesaid arrest, handcuffing and imprisonment.

32. The defendants issued an Appearance ticket to the infant plaintiff, requiring court appearances by the plaintiffs.

33. On May 17, 2012 a Mock Court Trial at the Brownsville Youth Court was prosecuted by Steven Costigliacci on behalf of and/or as agent of the defendant CITY OF NEW YORK against the infant plaintiff; the infant plaintiff, OMAR YASIN was found not guilty and it was determined that his aforesaid actions to defend himself from further injury after the assault and battery against him in the schoolyard of JHS 014 on February 15, 2012, were justified.

34. The defendant CITY OF NEW YORK, Law Dept., Office of the Corporation Counsel, refused to file a petition and refused to file any charges against the 13 year old infant plaintiff, OMAR YASIN. A Notice of Declination dated June 4, 2012 was issued by the defendant, CITY OF NEW YORK. (See plaintiffs’ Notice of Claim dated February 26, 2013 annexed hereto and incorporated herein as part of plaintiffs’ complaint).

35. The defendants, CITY OF NEW YORK, NYC BOARD OF EDUCATION, TULLY, LEGASA AND BRYANT further victimized, intimidated, humiliated and emotionally and psychologically abused the infant plaintiff, OMAR YASIN by causing, permitting and allowing the issuance of a 90 day suspension from school of this child, from February 17, 2012 to May 29, 2012.

36. A Civilian Complaint Review Board (CCRB) complaint was filed by the plaintiffs on February 20, 2012. Said complaint was referred to the Office of the Chief of Department (OCD) of the N.Y.C. Police Department on February 22, 2012, OCD Control # 201202205.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

37. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

38. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY POLICE DEPARTMENT, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

39. That at all times hereinafter mentioned the defendant, THE NEW YORK CITY BOARD OF EDUCATION, was and still is a Department, Agency and/or Division of the defendant CITY OF NEW YORK, a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

40. That at all times herein mentioned, the plaintiffs were and still are residents at 1724 A Sterling Place, County of Kings, City and State of New York.

41. Upon information and belief, that at all times herein mentioned, the defendant, ANNE TULLY was and still is a resident of the State of New York.

42. Upon information and belief, that at all times herein mentioned, the defendant, “JANE” BRYANT was and still is a resident of the State of New York.

43. Upon information and belief, that at all times herein mentioned, the defendant, “JANE” LAGASA was and still is a resident of the State of New York.

44. Upon information and belief, that at all times herein mentioned, the defendant, “JOHN” CUCUZZA (Shield # 1867), was and still is a resident of the State of New York.

45. Upon information and belief, that at all times herein mentioned, the defendant,

“ JOHN” DOE was and still is a resident of the State of New York.

46. Upon information and belief, that at all times herein mentioned, the defendant ANNE TULLY was employed by the defendants CITY OF NEW YORK and/or NYC BOARD OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

47. Upon information and belief, that at all times herein mentioned, the defendant “ JANE BRYANT” was employed by the defendants CITY OF NEW YORK and/or NYC BOARD OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

48. Upon information and belief, that at all times herein mentioned, the defendant “ JANE LAGASA” was employed by the defendants CITY OF NEW YORK and/or NYC BOARD OF EDUCATION and her conduct and actions set forth in this Complaint were in the course of her employment and in her official and individual capacity.

49. Upon information and belief, that at all times herein mentioned, the defendant “ JOHN” CUCUZZA (Shield # 1867) was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of his employment and in his official and individual capacity.

50. Upon information and belief, that at all times herein mentioned, the defendant “ JOHN DOE” was employed by the defendants CITY OF NEW YORK and/or NYCPD and his conduct and actions set forth in this Complaint were in the course of his employment and in his official and individual capacity.

51. That the plaintiffs have complied with all of the conditions precedent to the bringing of this action against the defendants and have complied with the provisions of the statute in such cases made provided; in particular plaintiffs have presented and served a Notice of Claim hereinafter mentioned (a copy of which is annexed hereto and incorporated herein by reference)

upon the defendants on February 28, 2013, and more that thirty 30 days have elapsed since the presentation of said claim and the claim remains unadjusted and the defendants have failed and/or refused to make any adjustments of same.

52. That the defendants have not requested a 50H hearing and specifically, by letter dated April 5, 2013 (copy annexed) informed the plaintiffs that they have “ disallowed” their claim.

53. That an Order to Show Cause issued by Hon. Gloria M. Dabiri, Supreme Court, Kings County, Index # 5920-13, was duly served on defendants and is returnable on May 31, 2013 in IAS Part 20, Room 456, for an Order under General Municipal Law Section 50 (3)(5) granting the plaintiffs permission to file a late Notice of Claim and deeming the aforesaid Notice of Claim served upon the defendants (copy annexed) deemed timely filed and served nunc pro tunc.

54. That this action is being commenced within one year and ninety days of the occurrence complained herein.

55. This action falls within one or more of the exceptions set forth in CPLR § 1602.

56. The defendants, CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, “ JANE” LAGASA, “ JANE” BRYANT, ANNE TULLY, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the Assistant Principal of J.H.S. 014, MS. LAGASA, the Dean at J.H.S. 014, MS. BRYANT, the Principal ANNE TULLY and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their

employees so as to enable them to control students and/or persons in classrooms and school yard; in failing to investigate and/or properly investigate the situation; were careless, reckless and negligent in their performance of their educational, supervisory, child safety and protection, guidance duties, functions and obligation; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms and in the school yard; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance, discipline, safety and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance, discipline and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for the safety of and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant claimant was involved in on the day of the incident; in failing to control students and in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of Anne Tully, Ms. Lagasa and Ms. Bryant; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding discipline, conduct, childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and

welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; in causing, permitting and allowing the seizure, confinement, false arrest, handcuffing and imprisonment of the infant plaintiff OMAR YASIN on school grounds to and at the 61st Pct.; in carelessly, recklessly and negligently failing to prevent the aforesaid incident; the 13 year old child OMAR YASIN was not properly protected from the aforesaid conduct, actions, intimidation and abuse by defendants Lagasa, Bryant and Anne Tully.

57. The defendants CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. "JOHN" CUCUZZA, "P.O. JOHN DOE", their agents, servants and/or employees were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its officers, agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 13 year old infant claimant; in falsely detaining, arresting and imprisoning the said 13 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 13 year old child, OMAR YASIN, for approximately 3 ½ hours, deprivation of his civil rights and denial of access to his parents and guardians; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, with a reckless disregard for the safety and welfare of said 13 year old infant claimant OMAR YASIN; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD

and the NYCPD 61st PCT., their agents, servants and employees on and before February 15, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 61st Pct., and the Police officers of the 61st Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 13 year old infant OMAR YASIN herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 61st Pct., NYC P.O. CUCUZZA and the unidentified police officers of NYCPD 61ST Pct., their false arrest and imprisonment of 13 year old OMAR YASIN, the isolating, imprisoning, handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 13 year old child to his parents for over 3 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 61st Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 61st PCT., failed to adequately and properly train the defendant CUCUZZA and the aforesaid unidentified police officers of the 61st Pct., with a deliberate indifference to the Civil Rights of the infant 13 year old OMAR YASIN and his parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 61st PCT., their agents, servants and/or employees deprived the said claimants, the 13 year old child, OMAR YASIN and his parents, LISA YASIN AND OMAR YASIN, SR., of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations

of the City and State of New York and the United States of America/Federal Government. Defendant' s THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, " JOHN CUCUZZA, " JOHN DOE", their agents, servants and/or employees maliciously assaulted and handcuffed the 13 year old claimant, verbally abused and humiliated and embarrassed the 13 year old claimant, OMAR YASIN and defamed his character. Defendants, THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, their agents, servants and/or employees, P.O. CUCUZZA and " JOHN DOE" and other unidentified NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 13 year old claimant, OMAR YASIN, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his parents and guardians, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 13 year old child; all of which caused and inflicted serious injury and damage to the 13 year old claimant OMAR YASIN, herein set forth.

58. That as a result of the aforesaid incident the infant plaintiff, OMAR YASIN was caused to sustain serious and severe personal injuries.

59. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and

others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

60. That the said occurrence and the injuries and damages to the infant plaintiff, OMAR YASIN, resulting therefrom were caused solely and wholly by reason of the carelessness, recklessness and negligence of the defendants, their agents, servants and/or employees.

61. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE
INFANT PLAINTIFF, OMAR YASIN**

62. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1 - 61 with the same force and effect as though the same were more fully set forth at length hereat.

63. The defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of unreasonably seizing and unlawfully arresting New York City public school students, and plaintiff OMAR YASIN in particular, absent probable cause of criminal activity in violation of the Fourth and Fourteenth Amendments to the United States Constitution and without a warrant.

64. Defendants, TULLY, BRYANT, LAGASA, NYC P.O. CUCUZZA AND P.O.

“JOHN DOE” are liable pursuant to 42 U.S.C. § 1983 for unreasonably confining, detaining, seizing and unlawfully arresting and imprisoning the infant plaintiff, OMAR YASIN, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

65. The defendants, their agents, servants and/or employees deprived the infant plaintiff, OMAR YASIN of due process and violated his Civil Rights under the Constitution and Laws of the State of New York and the United States of America, as well as all applicable Civil Rights Statutes, Laws, Ordinances, rules and regulations of the City and State of New York and the United States of American Federal Government.

66. This action falls within one or more of the exceptions set forth in CPLR § 1602.

67. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

68. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been

damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

69. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-68 with the same force and effect as though the same were more fully set forth at length hereat.

70. The defendants, their agents, servants and/or employees wrongfully, unlawfully, maliciously assaulted, handcuffed, humiliated, embarrassed, seized, confined and imprisoned the infant plaintiff at his school, in a police vehicle and at the NYCPD 61ST Pct. for 3 ½ hours, in view of his friends, neighbors, teachers, relatives and others, causing him severe personal injuries.

71. The defendants CITY OF NEW YORK, NYC BOARD OF EDUCATION AND THE NYCPD are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of using excessive force against New York City public school children and students and the infant plaintiff, OMAR YASIN in particular, violation of the Fourth and Fourteenth Amendments to the United States Constitution.

72. Defendants NYC P.O. CUCUZZA and “JOHN DOE” are liable pursuant to 42 U.S.C. § 1983 for using excessive force against the infant plaintiff, OMAR YASIN in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

73. Defendants ANNE TULLY, “JANE” LAGASA AND “JANE” BRYANT are liable pursuant to 42 U.S.C. § 1983 for causing, permitting and allowing the use of excessive

force against the infant plaintiff, OMAR YASIN in violation of the Fourth and Fourteenth Amendment to the United States Constitution.

74. That the defendants, their agents, servants and/or employees acted under color of State Law to deprive the infant plaintiff OMAR YASIN of his right to be free of excessive force as guaranteed by the Fourth and Fourteenth Amendments to the United States Constitution as enforced by 42 U.S.C. § 1983.

75. This action falls within one or more of the exceptions set forth in CPLR § 1602.

76. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

77. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

78. Plaintiffs repeat, reiterate and reallege each and every allegation contained in the paragraphs 1-77 with the same force and effect as though the same were more fully set forth at length hereat.

79. That the defendants are liable pursuant to 42 U.S.C. § 1983 for maintaining a policy, practice and custom of committing abuses against New York City public school students and the infant plaintiff, OMAR YASIN, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

80. Defendants TULLY, LAGASA & BRYANT, CUCUZZA and “JOHN DOE” are liable pursuant to 42 U.S.C. § 1983 for abuses against the infant plaintiff, OMAR YASIN, depriving him of substantive due process that shocks the conscience in violation of the Fourteenth Amendment to the United States Constitution.

81. This action falls within one or more of the exceptions set forth in CPLR § 1602.

82. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under

the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

83. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

84. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-83 with the same force and effect as though the same were more fully set forth at length hereat.

85. By their actions, as set forth in this complaint and exhibits annexed, the defendants, their agents, servants and/or employees, in their official and individual capacities, acted under color of State Law to deprive the infant plaintiff, OMAR YASIN of his right to be free from false arrest and false imprisonment as guaranteed by the Fourth and Fourteenth Amendments of the Federal Constitution, as enforced by to 42 U.S.C. § 1983.

86. This action falls within one or more of the exceptions set forth in CPLR § 1602.

87. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity,

embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

88. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

89. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-88 with the same force and effect as though the same were more fully set forth at length hereat.

90. The defendants CITY OF NEW YORK, NYC BOARD OF EDUCATION AND NYCPD are liable for the unreasonable seizures and unlawful arrests of New York City public school children and students and plaintiff OMAR YASIN in particular, in violation of Article 1 § 12 of the New York Constitution.

91. Defendants, P.O. CUCUZZA and “JOHN DOE” are liable pursuant to Article 1 § 12 of the New York Constitution for unreasonable seizure and unlawful arrest of the infant plaintiff, OMAR YASIN.

92. Defendants, TULLY, LAGASA and BRYANT are liable pursuant to Article 1 § 12 of the New York Constitution for causing, permitting and allowing the unreasonable seizure and unlawful arrest of the infant plaintiff, OMAR YASIF.

93. This action falls within one or more of the exceptions set forth in CPLR § 1602.

94. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

95. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

96. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-95 with the same force and effect as though the same were more fully set

forth at length hereat.

97. The Defendants, CITY OF NEW YORK, NYC BOARD OF EDUCATION and NYCPD are liable for the false arrest of New York City public school children and students and the infant plaintiff, OMAR YASIN in particular, in violation of New York Law.

98. Defendants, P.O. CUCUZAA and “JOHN DOE” are liable for the false arrest of the infant plaintiff, OMAR YASIN in violation of New York State law.

99. Defendants, TULLY, LAGASA and BRYAN are liable for causing, permitting and allowing the false arrest of the infant plaintiff, OMAR YASIN in violation of New York State law.

100. This action falls within one or more of the exceptions set forth in CPLR § 1602.

101. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable deprivation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

102. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been

damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

103. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-102 with the same force and effect as though the same were more fully set forth at length hereat.

104. The Defendants, CITY OF NEW YORK, NYC BOARD OF EDUCATION and NYCPD are liable for the assault and battery of New York City public school children and students and the infant plaintiff, OMAR YASIN in particular, in violation of New York Law.

105. Defendants, P.O. CUCUZAA and “JOHN DOE” are liable for the assault and battery of the infant plaintiff, OMAR YASIN in violation of New York State law.

106. Defendants, TULLY, LAGASA and BRYAN are liable for causing, permitting and allowing the assault and battery of the infant plaintiff, OMAR YASIN in violation of New York State law.

107. This action falls within one or more of the exceptions set forth in CPLR § 1602.

108. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends,

neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

109. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A NINETH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

110. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-109 with the same force and effect as though the same were more fully set forth at length hereat.

111. That all accusations and charges against the infant plaintiff, OMAR YASIN were false which was at all times known to the defendants, their agents, servants and/or employees.

112. That the defendants, their agents, servants and/or employees falsely arrested, imprisoned and maliciously prosecuted the infant plaintiff, OMAR YASIN and as a result of defendants abuse of process, the infant plaintiff was caused and subjected to great indignation and humiliation, embarrassment, pain and distress of mind and body and suffered injury and damage and defamation of his good name and reputation in the community, among his friends, neighbors, teaches and others.

113. This action falls within one or more of the exceptions set forth in CPLR § 1602.

114. That as a result of the defendants aforesaid conduct, actions, negligence, Carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

115. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
THE INFANT PLAINTIFF OMAR YASIN**

116. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-113 with the same force and effect as though the same were more fully set forth at length hereat.

117. As a result of the defendants and their agents, servants and/or employees' intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and

conduct and their gross negligence and recklessness as set forth in this complaint, the infant plaintiff, OMAR YASIN claims punitive damages against the defendants.

118. This action falls within one or more of the exceptions set forth in CPLR § 1602.

119. That as a result of the defendants aforesaid conduct, actions, negligence, carelessness and recklessness of the defendants, their agents, servants and/or employees the infant plaintiff OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, post traumatic stress disorder, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment.

120. That by reason of the foregoing, the infant plaintiff, OMAR YASIN, has been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFFS LISA YASIN AND OMAR YASIN, SR.**

121. Plaintiffs repeat and reiterates and realleges each and every allegation contained in the paragraphs 1-120 with the same force and effect as though the same were more fully set forth at length hereat.

122. At all times herein mentioned, the plaintiff LISA YASIN was and still is the mother and natural guardian of the infant plaintiff, OMAR YASIN and the plaintiff OMAR YASIN, SR. was and still is the father and natural guardian of the infant plaintiff, OMAR YASIN, and said plaintiffs were entitled to the services, society and companionship of the infant plaintiff, OMAR YASIN.

123. That by reason of the forgoing, plaintiffs LISA YASIN and OMAR YASIN, SR. have been deprived of the services, society and companionship of infant plaintiff, OMAR YASIN and caused to incur and continues to incur expenses and costs for his medical care and treatment for injuries and damages caused by the defendants' aforesaid conduct, actions, carelessness, recklessness and negligence.

124. The plaintiffs LISA YASIN and OMAR YASIN, SR. sustained and continue to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of due process and their Civil Rights guaranteed under the Constitution of the United States of America and the State of New York, as well as the Civil rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of American/Federal Government.

125. That by reason of the forgoing, plaintiffs LISA YASIN and OMAR YASIN, SR. have been damaged in a sum which exceeds the jurisdictional limits of all lower costs which would otherwise have jurisdiction and these plaintiffs further claim punitive damages against the defendants as a result of their intentional, concerted, conspired, wanton, malicious, egregious and shocking actions and conduct and their gross negligence and recklessness as set

forth in this Complaint.

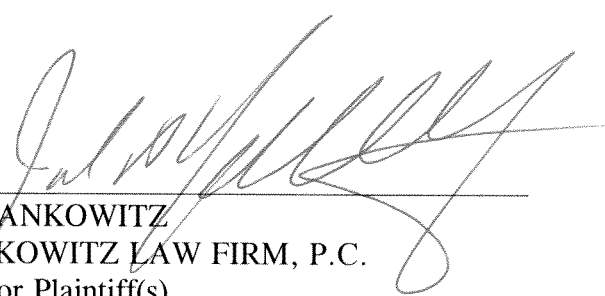
126. This action falls within one or more of the exceptions set forth in CPLR § 1602.

127. That by reason of the foregoing, the plaintiffs, LISA YASIN and OMAR YASIN, SR., have been damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiffs demand judgment against the defendants on the FIRST, SECOND, THIRD, FOURTH, FIFTH, SIXTH, SEVENTH, EIGHTH, NINTH, TENTH AND ELEVENTH CAUSES OF ACTION, for damages in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction in all Actions, together with costs, attorney fees and disbursements of these actions.

Dated: Great Neck, NY
May 3, 2013

Yours, etc.



JACK A. YANKOWITZ
THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiff(s)

OMAR YASIN, infant, by his parents and natural guardians, LISA YASIN and OMAR YASIN, SR. and LISA YASIN and OMAR YASIN, SR.,
Individually

175 East Shore Road
Great Neck, NY 11023
(516) 622-6200
Our File No. 7536-12

ATTORNEY'S VERIFICATION

JACK A. YANKOWITZ, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

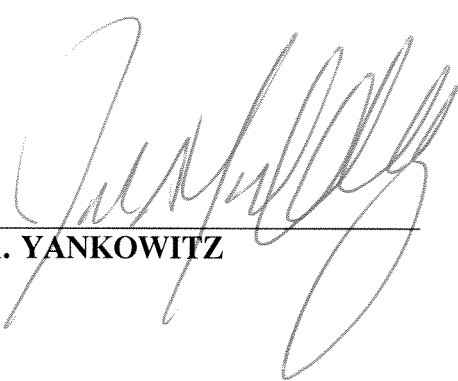
I am an attorney at THE YANKOWITZ LAW FIRM, P.C., attorneys of record for Plaintiff(s), infant, **OMAR YASIN LIZA YASIN AND OMAR YASIN, SR.**, in the action within. I have read the annexed

SUMMONS AND COMPLAINT

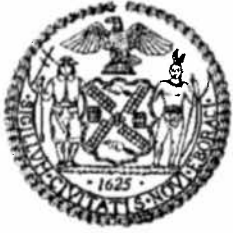
and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the Plaintiff(s) maintain their offices.

DATED: Great Neck, NY
May 3, 2013



JACK A. YANKOWITZ



THE CITY OF NEW YORK OFFICE OF THE COMPTROLLER
1 CENTRE STREET, NEW YORK, N.Y. 10007-2341

John C. Liu
COMPTROLLER

015 - 155

Date: 03/05/2013

RE: Disallowance-Over 90 Days

OMAR YASIN

Claim number: 2013PI006246

OMAR YASIN c/o YANKOWITZ LAW FIRM
175 EAST SHORE RAD SUITE 500
GREAT NECK, NY 11023

Dear Claimant:

We regret to inform you that your claim has been disallowed. Your claim was not filed within 90 days from the date of occurrence as required by the General Municipal Law Section 50-e. Claims must be filed with either the New York City Office of The Comptroller, the New York City Law Department, the New York City Board of Education or the New York City Health and Hospitals Corporation, depending on the substance of the claim.

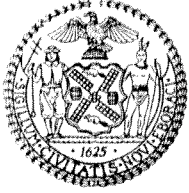
If you have been scheduled for a Comptroller's hearing (50-h, General Municipal Law), please deem the hearing canceled.

Very truly yours,

Verna Baptiste
VERNA BAPTISTE

Bureau of Law & Adjustment

PERSONAL INJURY
(212) 669-4445



Michael Aaronson
Chief, Bureau of Law and
Adjustment

015 - 151

THE CITY OF NEW YORK
OFFICE OF THE COMPTROLLER
CLAIMS AND ADJUDICATIONS
1 CENTRE STREET ROOM 1200
NEW YORK, N.Y. 10007-2341

WWW.COMPTROLLER.NYC.GOV

John C. Liu
COMPTROLLER

Date: 03/04/2013
Claim No: 2013PI006246
RE: Acknowledgment of Claim

OMAR YASIN c/o YANKOWITZ LAW FIRM
175 EAST SHORE RAD SUITE 500
GREAT NECK, NY 11023

Dear Claimant:

We acknowledge receipt of your claim, which has been assigned the claim number shown above. Please refer to this claim number in any correspondence or inquiry you may have with our office.

We will do our best to investigate and, if possible, settle your claim. However, if we are unable to resolve your claim, **any lawsuit against the City must be started within one year and ninety days from the date of the occurrence.**

If you have any questions regarding your claim, you may contact us at either 212-669-8750 for property damage claims or 212-669-4445 for claims involving personal injury.

Sincerely,
Michael Aaronson

NOTICE OF CLAIM

-----X
In the Matter of the Claim of

OMAR YASIN, Infant, by
His parents and natural guardians, LISA YASIN and OMAR YASIN, SR.
and LISA YASIN and OMAR YASIN, SR., Individually

- against -

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION,
JHS 014, MS. LAGASA, MS. BRYANT, ANNE TULLY,
NEW YORK CITY POLICE DEPARTMENT,
NYCPD 61ST PRECINCT, NYC P.O. CUCUZZA (SHIELD # 1867)
AND POLICE OFFICERS OF THE 61ST PRECINCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

-----X

TO: The Comptroller of the City of New York
Municipal Building
New York, New York 10007

NEW YORK CITY BOARD OF EDUCATION, J.H.S.014 AND
MS. LAGASA, MS. BRYANT AND ANNE TULLY
65 Court Street, Room 809, Brooklyn, New York 11201

J.H.S. 014
2424 Batchelder Street, Brooklyn, NY 11235

NEW YORK CITY POLICE DEPARTMENT, P.O. CUCUZZA,
NYCPD 61TH PCT AND CERTAIN UNIDENTIFIED NYCPD OFFICERS
1 Police Plaza
New York, New York

NYCPD 61ST PRECINCT, NYC P.O. CUCUZZA AND VARIOUS
UNIDENTIFIED OFFICERS
2575 Coney Island, Brooklyn, New York

PLEASE TAKE NOTICE that the undersigned claimant hereby makes
claim and demands against you as follows:

1. Name and post office address of each claimant and claimants'
attorneys is:

Claimant

OMAR YASIN
LISA YASIN AND OMAR YASIN, SR.
1724A Sterling Place
Brooklyn, NY 11233

Attorney

THE YANKOWITZ LAW FIRM, PC
175 East Shore Road
Great Neck, NY 11023
(516) 622-6200

2. The nature of the claim: To recover money damages for personal injuries, pain and suffering, emotional and psychological damages, humiliation, intimidation, embarrassment, defamation of character, medical expenses and related damages, deprivation of Civil Rights, false arrest and false imprisonment, assault and battery, malicious prosecution and all damages permitted by Statute and Case Law, incurred by and on behalf of the 13 year old infant claimant OMAR YASIN, , and punitive damages, by reason of his false arrest/false imprisonment, deprivation of Civil Rights, assault and battery, malicious prosecution, physical, verbal and emotional abuse, excessive force and abuse, complicity in causing excessive and unnecessary infliction of physical, verbal and emotional abuse, and the negligence, carelessness and recklessness committed by THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, NYC P.O. CUCUZZA and certain police officers of the NYCPD 61th Pct. whose names and identities are presently unknown, and their agents, servants and/or employees and by the NEW YORK CITY BOARD OF EDUCATION, J.H.S. 014 and MS. LAGASA, MS. BRYANT AND ANNE TULLY.

3. The time when, the place where and the manner in which the Claim arose: Upon information and belief, the claim arose on February 15, 2012 at approximately 12:00 noon TO 1:00 PM, while the 13 year old infant, OMAR YASIN, was in attendance at Junior High School 014 located at 2424 Batchelder Street, Brooklyn, New York.

At said time, date and place, MS. LAGASA (Assistant Principal at J.H.S. 014) MS. BRYANT (a Dean a J.H.S. 014) and ANNE TULLY (Principal) caused 13 year old infant OMAR YASIN to be removed from his scheduled school activity, where they, without notifying the child's parents and guardians Lisa Yasin and Omar Yasin, Sr., without permission from the child's parents, caused, permitted and allowed the child's false arrest and imprisonment by NYC P.O. CUCUZZA (Shield # 1867) and other NYC Police Officers from the NYCPD 61ST Pct.

On February 15, 2012, approximately between 12:00 - 12:30 PM in the schoolyard of J.H.S. 014, located at 2424 Batchelder Street, Brooklyn, NY, the 13 year old infant, OMAR YASIN was assaulted and struck by another student named, upon information and belief, Omar "Doe" (last name being unknown at the present time) and infant claimant attempted to defend himself. Thereafter the infant claimant OMAR YASIN, while in the school cafeteria, was caused to be removed therefrom by the school's Assistant Principal, Ms. Lagasa and the school's Dean, Ms. Bryant who caused, permitted and allowed the 13 year old infant claimant,

OMAR YASIN to be falsely arrested, imprisoned and handcuffed by NYC P.O. Cucuzza (Shield # 1867) and another NYC police officer (both from the NYCPD 61st Pct). Said NYCPD officers handcuffed the 13 year old OMAR YASIN behind his back, then took him out of said school in view of the students, teachers and others, placed the child OMAR YASIN into a NYCPD vehicle and brought to the 61st Pct. At the 61st Pct. 13 year old OMAR YASIN was falsely arrested and imprisoned and treated like a hardened criminal; he was placed into a room and handcuffed to a wall for approximately 3 hours; he was denied food and drink; he was denied access to legal counsel during the entire time of his incarceration and imprisonment; he was denied access and permission to see and speak with his parents and guardians Lisa Yasin and Omar Yasin, Sr. during the entire time of the 3 hour incarceration and imprisonment even though they were present in the precinct and demanded to see their 13 year old child. The aforesaid officers of the 61st Pct. used excessive and unnecessary force, falsely and unnecessarily imprisoned and handcuffed this 13 year old child for approximately 3 ½ hours, during which time they intimidated this child, interrogated this child, deprived him of his constitutional and civil rights and due process, denied, refused and deprived access to his parents and legal counsel.

THE CITY OF NEW YORK, THE NYC BOARD OF EDUCATION, J.H.S. 014, their employees, MS. LAGASA AND MS. BRYANT, THE NYC POLICE DEPARTMENT, THE NYCPD 61ST PCT., NYC P.O. CUCUZZA and the aforesaid certain police officers of the 61st Pct. whose identities are presently unknown, falsely and unnecessarily confined, arrested, imprisoned, verbally, physically and emotionally abused, intimidated, interrogated, humiliated, embarrassed and defamed the 13 year old infant, OMAR YASIN; they used excessive and unnecessary force, handcuffing his arms behind his back and removing him from his school to the 61ST Pct. where he was handcuffed to a wall for 3 more hours.

At all times following and during the aforesaid confinement, false arrest and imprisonment, handcuffing and deprivation of the civil rights of the of the 13 year old child, OMAR YASIN, Ms. Lagasa, Ms. Bryant, Anne Tully and other employees of the NYC BOARD OF EDUCATION at J.H.S. 014, P.O. CUCUZZA, and the other aforesaid unidentified NYC police officers and NYCPD, 61st Pct. and their agents and employees possessed information and knowledge that the claims and accusations against the 13 year old child OMAR YASIN were false and without merit and he had not committed a criminal act. The aforesaid false arrest and imprisonment of the 13 year old OMAR YASIN was made without a warrant and without probable cause to believe a crime was committed. Upon information and belief, at all times hereinmentioned, J.H.S. 014, the NYC BOARD OF EDUCATION, ANNE TULLY, MS. LAGASA, AND MS. BRYANT, were aware that on 3 occasions prior to February 15, 2012, the infant claimant OMAR YASIN was the victim of and was injured by the bullying of other students at said J.H.S. 014 and they were aware that on February 15, 2012, as described above, the infant claimant

OMAR YASIN attempted to defend himself after being assaulted and struck by another student.

The NYCPD, 61st Pct., NYC P.O. CUCUZZA and certain other unidentified police officers failed and refused to permit the 13 year old OMAR YASIN to have access, contact or communication with his parents Liza Yasin and Omar Yasin, Sr. during the entire time the child was imprisoned, confined and handcuffed; the 13 year old child OMAR YASIN was denied and deprived of his civil rights both State and Federal, (including but not limited to 42USC § 1983, 1981 and the Fourth Amendment of the United States Constitution), was refused access to his parents and guardians, refused access to an attorney and was verbally, physically and emotionally abused, intimidated, humiliated, embarrassed and defamed by NYCPD officers, the 61st Pct. and the NYC P.O. Cucuzza.

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, and the NYCPD 61st Pct., their agents, servants and/or employees and NYC P.O. CUCUZZA and the aforesaid unidentified police officers of the 61st Pct. were careless, reckless and negligent in failing to properly train, instruct, supervise, monitor and control its agents, servants and employees; were careless, reckless and negligent in the performance of their law enforcement functions and duties; in that they failed to properly and adequately investigate the situation, question witnesses and respect and pay attention to the 13 year old infant claimant; in falsely detaining, arresting and imprisoning the said 13 year old infant claimant in a careless, reckless and negligent manner; in negligently, carelessly and recklessly failing to prevent the aforesaid incident; in causing, permitting and allowing the false arrest and imprisonment, excessive force, abuse and handcuffing of the 13 year old child, OMAR YASIN, for approximately 3 ½ hours, deprivation of his civil rights and denial of access to his parents and guardians; in that they failed to employ adequate, competent personnel, training, supervision and inspection; in that they maintained and controlled their police officers and investigators, in a reckless disregard for the safety and welfare of said 13 year old infant claimant OMAR YASIN; in that they failed to employ sufficient and adequate personnel and employees. That the CITY of NEW YORK, the NYCPD and the NYCPD 61st PCT., their agents, servants and employees on and before February 15, 2012 employed, engaged in, accepted, permitted and allowed a policy and/or custom and decision promulgated by the NYCPD, THE NYCPD 61st Pct., and the Police officers of the 61st Pct., of excessive and abusive force, lack of discretion and improper, careless, reckless and negligent investigation practices and procedures, racial and socio-economic bias and physical force and a disregard regarding the health, welfare and safety of children, specifically the 13 year old infant OMAR YASIN herein. The aforesaid actions and conduct by THE NEW YORK CITY POLICE DEPARTMENT 61st Pct., NYC P.O. CUCUZZA and the unidentified police officers of NYCPD 61st Pct., their false arrest and imprisonment of 13 year old OMAR YASIN, the isolating, imprisoning,

handcuffing, denial and deprivation of his civil rights, their denial and refusing access to this 13 year old child to his parents for over 3 hours while keeping him handcuffed to a wall, occurred pursuant to the practice of the NYCPD AND THE 61ST Pct. of abuse, physical force and deprivation of Civil Rights that was so permanent and well settled as to constitute a custom and usage with the force of law. The CITY OF NEW YORK, NYCPD and NYCPD 61ST PCT., failed to adequately and properly train the aforesaid unidentified police officers of the 61ST Pct., with a deliberate indifference to the Civil Rights of the infant 13 year old OMAR YASIN and his parents, in violation of 42USC § 1983. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, the 61ST PCT., their agents, servants and/or employees deprived the said claimants, the 13 year old child, OMAR YASIN and his parents, LISA YASIN AND OMAR YASIN, SR., of due process and violated their Civil Rights under the constitution of the State of New York and the United States of America, as well as all applicable Civil Rights statutes, laws, ordinances, rules and regulations of the City and State of New York and the United States of America/Federal Government. THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, 61ST PCT., their agents, servants and/or employees maliciously assaulted and handcuffed the 13 year old claimant, verbally abused and humiliated and embarrassed the 13 year old claimant, OMAR YASIN and defamed his character. THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, the 61ST PCT., their agents, servants and/or employees, P.O. CUCUZZA and other unidentified NYCPD officers wrongfully, unlawfully, falsely and maliciously held, confined, restrained and imprisoned the said 13 year old claimant, OMAR YASIN, handcuffed him for extended hours of time, falsely arrested him and deprived him of his liberty, violated his civil rights, isolated him and deprived him access to his parents and guardians, denied him access to legal counsel and verbally physically and emotionally abused, defamed, humiliated, intimidated and embarrassed this 13 year old child; all of which caused and inflicted serious injury and damage to the 13 year old claimant OMAR YASIN, herein set forth.

On May 17, 2012 a mock court trial (at the Brownsville Youth Court) was conducted by and/or on behalf or as agent of The City of New York and prosecuted by Steven Costigliacci; the infant OMAR YASIN was found not guilty and it was determined that his actions to defend himself were justified. (See notice of the Youth Court Trial dated May 8, 2012 annexed hereto).

Upon information and belief, the CITY OF NEW YORK, Law Department, Office of the Corporation Counsel refused to file a petition and refused to file any charges against the infant claimant, 13 year old OMAR YASIN. A Notice of Declination dated June 4, 2012 was issued by the City of New York, Law Department, a copy of which is annexed hereto and incorporated herein by reference. The arrest appearance ticket issued by NYC P.O. Cucuzza dated February 15, 2012 is annexed hereto.

THE CITY OF NEW YORK, THE BOARD OF EDUCATION, J.H.S. 014, MS. LAGASA, MS. BRYANT, Anne Tully, their agents, servants and/or employees, departments, agencies and those acting under their directions behest and control, were careless, reckless and negligent in their failure to properly investigate and/or evaluate the results of any investigation; in being careless, reckless and negligent in hiring, supervising, managing and controlling the Assistant Principal of J.H.S. 014, MS. LAGASA, the Dean at J.H.S. 014, MS. BRYANT, the Principal Anne Tully and those persons, agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to hire efficient and/or sufficient personnel in connection with the operation, management, control, teaching at and/or supervision of said School; in failing to train their employees so as to enable them to control students and/or persons in classrooms and school yard; in failing to adequately train their employees so as to enable them to control students and/or persons in classrooms and in the school yard; in failing to properly and/or adequately supervise the teaching curriculum and/or activities provided by and/or at said School; in failing to promulgate proper and/or adequate rules and regulations governing the proper teaching curriculum and/or supervision to be provided and rendered by those agents, servants and/or employees hired to operate, manage, control, supervise, teach at and/or run said School; in failing to promulgate proper and/or adequate rules and/or regulations governing the proper care, guidance and/or supervision to be provided and rendered to those utilizing said Public School; in failing to properly and/or adequately monitor the care, guidance and/or supervision provided at said School; in failing to properly and/or adequately provide guidance for and/or supervise the infant claimant herein; in failing to properly and/or adequately monitor and/or supervise the activities in which the infant claimant was involved in on the day of the incident; in failing to control students, in failing to prevent and/or stop inappropriate activity; in failing to adequately and properly supervise schoolyard activities; in failing to adequately and properly monitor, supervise and control the conduct and actions of Anne Tully, Ms. Lagasa and Ms. Bryant; in failing to promulgate, enforce and provide proper and adequate rules and regulations regarding childish behavior and misbehavior of Public School children and students, which are fair, constitutional and in accordance with their Civil Rights and which prevent any injury and damage to the health and welfare of the children under their care and prevent unnecessary physical, emotional and psychological abuse, injury and damage; the 13 year old child OMAR YASIN was not properly protected from the aforesaid conduct, actions, intimidation and abuse by Ms. Lagasa, Ms. Bryant and Anne Tully.

Upon information and belief, the 13 year old claimant, was the victim of an assault and defended himself to avoid further injury on February 15, 2012. The 13 year old OMAR YASIN, is the victim who was falsely arrested and imprisoned, handcuffed behind his back and removed from his school and placed into a NYCPD

vehicle then handcuffed in a police precinct for 3 hours, and physically, emotionally abused, intimidated, humiliated and deprived of his Civil and Constitutional rights and subject to unconscionable, unnecessary and excessive physical, emotional and psychological abuse by NYC P.O. CUCUZZA, other police officers of the NYCPD 61st Pct., The City of New York and the New York City Police Department. The City of New York, NYC Board of Education, J.H.S. 014, school principal ANNE TULLY and others further victimized, intimidated, humiliated and emotionally abused the infant 13 year old child OMAR YASIN by issuing a frivolous and meritless 90 day suspension to the infant OMAR YASIN, from February 17, 2012 to May 29, 2012. That said 90 day suspension was malicious, intentional, grossly negligent and reckless with knowledge that 13 year old OMAR YASIN was the victim and he had not committed a crime and his actions to defend himself were justifiable.

A Civilian Complaint Review Board (CCRB) complaint was filed by Lisa Yasin on February 20, 2012 at 8:15 AM. Said complaint was referred to the Office of the Chief of Department (OCD) of the New York City Police Department on February 22, 2012, OCD control number 201202205.

4. The infant Claimant OMAR YASIN sustained and continues to suffer from multiple bodily injuries, pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress of mind and body, defamation and injury to his name, character and reputation in the community and among his family, friends, neighbors and others, has suffered unconscionable depravation and denial of his Civil Rights guaranteed under the constitution of the United States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimant was caused to incur and continues to incur expenses for medical attention and treatment. The 13 year old infant claimant, OMAR YASIN, has suffered damages in the sum of FIFTY MILLION DOLLARS (\$50,000,000.00).

Infant Claimant OMAR YASIN further claims punitive damages in the amount of FIFTY MILLION (\$50,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, false imprisonment, suspension, physical, verbal, emotional and psychological abuse inflicted upon the 13 year old infant claimant and the aforesaid deprivation of the Civil and Constitutional Rights of the infant claimant, OMAR YASIN, a 13 year old child.

The claimants, LISA YASIN AND OMAR YASIN, SR. sustained and continue to suffer pain and distress, emotional and psychological injury and damage, great indignity, embarrassment and humiliation, pain and distress unconscionable depravation and denial of her Civil Rights guaranteed under the constitution of the United

States of America and the State of New York, as well as the Civil Rights statutes, laws, ordinances, rules and regulations of The City and State of New York and the United States of America/Federal Government; and claimants LISA YASIN AND OMAR YASIN were caused to incur and continues to incur expenses for medical attention and treatment on behalf of her son, the infant claimant, OMAR YASIN and they have suffered damages in the sum of TEN MILLION DOLLARS (\$10,000,000.00).

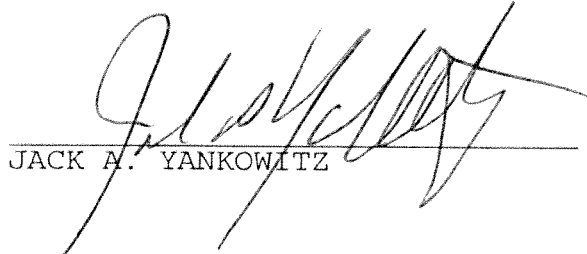
Claimants LISA YASIN AND OMAR YASIN, SR. further claim punitive damages in the amount of TEN MILLION (\$10,000,000.00) DOLLARS as a result of the aforesaid, concerted, conspired, wanton, willful and intentional assault/battery, false arrest, confinement, false imprisonment, physical, verbal, emotional and psychological abuse inflicted upon their son, infant claimant OMAR YASIN and the aforesaid deprivation of her Civil and Constitutional Rights and those of their son infant claimant, OMAR YASIN, a 13 year old child.

The undersigned and claimants herein therefore present these claims for adjustment and payments. You are hereby notified that unless said claims are adjusted and paid within the time provided by law from the date of presentation to you, the claimants intend to commence an action on these claims.

Dated: Great Neck, New York
February 26, 2013



THE YANKOWITZ LAW FIRM, P.C.
Attorney for Claimant
175 East Shore Road
Great Neck, New York 11023
(516) 622-6200


JACK A. YANKOWITZ

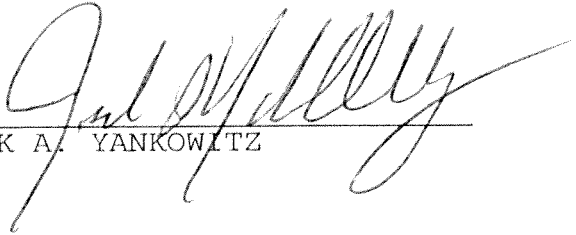
VERIFICATION

STATE OF NEW YORK

ss.:

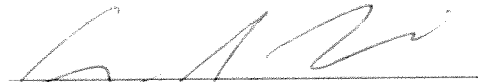
COUNTY OF NASSAU }

JACK A. YANKOWITZ, being duly sworn, deposes and says that deponent is the attorney for the above-named claimant; deponent has read the foregoing NOTICE OF CLAIM and know its contents; the same is true to deponent's knowledge, except as to those matters stated to be alleged upon information and belief, and as to those matters deponent believes it to be true.



JACK A. YANKOWITZ

Sworn to before me on
February 26, 2013



NOTARY PUBLIC

ANDREW S. KOENIG
Notary Public, State of New York
No. 01K08049886
Qualified in Nassau County
Certificate filed in Suffolk County
Commission Expires June 26, 20 14



APPEARANCE TICKET - FAMILY COURT

(Pursuant to Family Court Act §307.1)

(R) 222 130 (202) 839) Post

TO:

YASIN OMAR
(Child)
1724 Sterling Pl.
(Address)

YASIN AMAR
(Parent/Person Legally Responsible for Child's Care)
1724 Sterling Pl
(Address)
[Signature]
(Signature)

YOU AND EACH OF YOU ARE HEREBY DIRECTED TO APPEAR on the

17 day of February, 20 12 at 9:00
(A.M.) (P.M.) at the probation service of Kings County, at
(Street and City Address) 336 JAY ST

New York, in connection with the following crime(s) allegedly committed by the child, who is
15 years of age:

(Include date, time and place)

Date of Issuance: 2-15-12

Name of Issuer: PO CUCUZZA

Precinct of Record: 061

1466 6102

Arrest Number: K12615600-R

Borough: Brooklyn

Signature of Issuer:

PO [Signature]
(Police Officer) (Peace Officer)
(Probation Director) - (Designee)
(Administrative Detention Facility) - (Designee)

DISTRIBUTION: WHITE - Respondent BLUE - Parent/Person Legally Responsible for Child's Care
PINK - Complainant/Officer BUFF - Probation Service GREEN - Precinct File



KINGS COUNTY COURTHOUSE OFFICE
110 JAY STREET, 12TH FLOOR
BROOKLYN, NY 11201

THE CITY OF NEW YORK
LAW DEPARTMENT
FAMILY COURT DIVISION

(718) 802-2530
FAX (718) 222-2373

NOTICE OF DECLINATION

Name of Juvenile:
(Nombre del Menor)

Cesar Yasin

Name of Parent/Guardian:
(Nombre del Padre/Tutor)

Lisa Yasin

Address:
(Dirección)

1724 Hedden Place
Brooklyn, NY 11233

Apt. No.:

A

Date of Offense:
(Fecha del Delito)

2/15/12

Date of Arrest:
(Fecha de la Detención)

2/15/12

The Office of the Corporation Counsel (prosecutor) has determined that a petition will not be filed against the above-named juvenile in connection with the above-referenced matter. You need not appear in Court concerning this arrest. This matter will be closed and sealed pursuant to Family Court Act §375.1(4) within thirty (30) days.

This declination notice applies only to the arrest referred to above. It does not apply to any other case the above-named juvenile may have in the Family Court or in any other Court.

If you have any questions about this notice you should ask your lawyer, if you already have one, or you may call the telephone number listed below or the Legal Aid Society - Juvenile Rights Division (LAS-JRD).

Referral for Services YES ☐ NO ☐ Enclosed is a list of community-based services which offer various types of counseling and mediation services that you/your family may find useful.

Date:
(Fecha)

June 4, 2012

A.C.C.:

Costigliaro

LAS-JRD telephone number:
(Número de teléfono del LAS-JRD)

(718) 222-

2-381

(718) 237-3100

SEE THE REVERSE SIDE OF THIS PAGE FOR THE SPANISH TRANSLATION
VEA EL DORSO DE LA PAGINA PARA LA TRADUCCION

BROWNSVILLE

YOUTH

COURT

A Project of the New York State Court System
and the Center for Court Innovation

May 8, 2012

Parent or Guardian of
Omar Yasin
1724 Sterling Place Apt A
Brooklyn, N.Y. 11233

Dear Parent/Guardian,

This letter is to confirm your appointment with the Brownsville Youth Court on Thursday, May 17, 2012 at 4:00 pm. We ask that you arrive by 3:45 pm so that we can complete your intake process. Hearings are held from 4:00- 6:00 pm and will be heard in the order intake is completed. Please allow for this time. You do not need to bring anything with you. Your child, Omar Yasin, must attend with an adult.

The case was referred to the Brownsville Youth Court by the Law Department. Your child's successful completion of the Youth Court process, including the completion of all sanctions determined by the jury, will result in a report to Law Department documenting that s/he has taken responsibility for his/her actions and completed the program to which s/he was referred.

Enclosed you will find information about the Brownsville Youth Court, and directions. Please feel free to contact me at (347)-404-9582 for additional information.

Sincerely,



Danny Conyers
Case Developer

YOUTH

YOUTH COURT LOCATION

All hearings take place at:
Brownsville Community Justice Center
444 Thomas Boyland St., Rm. 106 (Btw. Pitkin Ave and East New York Ave.)
Brooklyn, NY 11233

By Train: Take the C Train to Rockaway Ave. Head west on Fulton St toward Somers St. Turn Left on Thomas Boyland.
Continue Down Thomas Boyland to East New York Ave.

Take the J Train to Rockaway Ave. Transfer to the B60 and take it to Rockaway Avenue and Pitkin Ave. Walk East on Pitkin Ave.
toward Strauss St. Turn Left on Thomas Boyland St.

By Bus: Take the B14 to Bristol Street., the B12 to East New York Ave. and Amboy St. Walk on East New York Ave. Towards
Thomas Boyland St. Turn right on Thomas Boyland St.

Take the Bus B60 to Rockaway Avenue and Pitkin Ave., Walk west toward Chester St. Turn Right onto Thomas Boyland St.

Take the MIDWOOD CONEY ISLAND AVE. B7 to Saratoga Ave. and Pitkin Ave. Walk East on Pitkin Ave. Toward Strauss St.
Turn Left on Thomas Boyland St.

Or
Take the BED-STUY BWAY-HALSEY ST. B7 to East New York Ave. & Amboy St.
Head Northeast on East New York Ave. Turn right on Thomas S. Boyland St.

Take the B47 to Sterling Place. Walk 3 blocks East on Sterling Pl to E. New York Ave. Continue 1 block east on E. New York Ave
and make a right on Thomas Boyland St.

YOUTH COURT OVERVIEW

The Brownsville Youth Court is a program for young people aged 10 – 18 referred by local schools, community organizations and police for offenses such as assault, shoplifting, vandalism, and truancy. These young people appear before a judge and jury of their peers – other neighborhood teens – who determine fair and appropriate responses. The Brownsville Youth court emphasizes:

Responsibility: Youth Court teaches young people that actions have consequences. Because this message comes from other young people, it is more likely to be heard and understood.

Paying Back the Community: Youth Court members care about their community and expect the same from their peers. Youth are "sentenced" to restore the harm done to their community through service. For example, a youth caught "tagging" a building may be required to participate in graffiti removal in their community.

Help: The Brownsville Youth Court links young people and their families to social services, such as counseling, job training and mentoring so they can get the help they need to avoid further disciplinary action at their school or program and/or future involvement with the justice system.

Leadership: Youth Court teaches young people how to be leaders. Members are trained in group-decision making, the judicial process and public speaking. Youth who have successfully gone through the Youth Court may also become members.

Hearings, which take place in the evenings, are open to the public. All participants and observers must take an oath of confidentiality.

Before the Youth Court hearing, the youth meets with his/her "Youth Advocate," a young person who performs a role similar to a defense attorney. During the hearing, the youth tells his/her story and is questioned by members of the jury. Unlike a traditional court, the youth has opportunities to speak throughout the hearing. After considering all of the information, the jury decides on a fair and appropriate sanction that holds the youth accountable and restores harm done to the community.

Brownsville Youth Court staff members closely monitor the completion of sanctions and share the results with the referring organization.

In the Matter of the Claim of
OMAR YASIN, infant, by his parents and
natural guardians, LISA YASIN and OMAR YASIN, SR.
and LISA YASIN and OMAR YASIM, SR., Individually

-against-

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION
JHS 014, MS. LAGASA, MS. BRYANT, ANNE TULLY,
NEW YORK CITY POLICE DEPARTMENT,
NYCPD 61st PRECINCT, NYC P.O. CUCUZZA (SHIELD # 1867)
AND POLICE OFFICERS OF THE 61st PRECINCT WHOSE NAMES
AND IDENTITIES ARE PRESENTLY UNKNOWN

NOTICE OF CLAIM

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Claimants

**175 East Shore Road
Great Neck, NY 11023
(516)622-6200**

TO:

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

OMAR YASIN, infant, by his parents and
natural guardians, LISA YASIN and OMAR YASIN, SR.
and LISA YASIN and OMAR YASIM, SR., Individually

Plaintiffs,

-against-

THE CITY OF NEW YORK
NEW YORK CITY BOARD OF EDUCATION,
ANNE TULLY, in her individual and official
capacities, "JANE" LAGASA (first name
being fictitious and presently unknown),
in her individual and official capacities
and "JANE" BRYANT, (first name being
fictitious and presently unknown) in her
individual and official capacities,
NEW YORK CITY POLICE DEPARTMENT,
NYC P.O. "JOHN" CUCUZZA, name being
fictitious and presently unknown), in his
individual and official capacities, NYC
P.O. "JOHN DOE" (name being fictitious and
presently unknown), in his individual and
official capacities, A

Defendants.

-----X

SUMMONS AND VERIFIED COMPLAINT

THE YANKOWITZ LAW FIRM, P.C.

Attorneys for Plaintiffs

175 East Shore Road
Great Neck, NY 11023
(516)622-6200

TO: